



CHAPTER 26

An Act to make provision with respect to the allowing of free travel or reduced fares on public service vehicles run by local authorities and for purposes connected therewith. [6th May, 1955]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Notwithstanding anything in any other enactment or in any rule of law to the contrary, it shall be lawful for any local authority who are operating a public service vehicle undertaking to make arrangements for the granting of established travel concessions to qualified persons travelling on the public service vehicles run by the local authority or on any of those vehicles to which the arrangements relate. Granting by local authorities of travel concessions.

(2) In this Act the expression “qualified persons” means persons mentioned in any of the following paragraphs or any description of such persons, that is to say—

- (a) men over the age of sixty-five years and women over the age of sixty years;
- (b) persons whose age does not exceed fifteen years;
- (c) persons whose age exceeds fifteen years but does not exceed eighteen years and who are undergoing full-time education;
- (d) blind persons, that is to say persons so blind as to be unable to perform any work for which eyesight is essential;

- (e) persons suffering from any disability or injury which, in the opinion of the local authority, seriously impairs their ability to walk;
- (f) members of the local authority or of a constituent authority of the local authority (including persons who for the purposes of Part VI of the Local Government Act, 1948, are to be treated as members of the local authority or constituent authority):

Provided that travel concessions granted to a person by virtue of paragraph (c) of this subsection shall be limited to travel between the residence of such person and his place of education or for purposes in connection with the education received by him thereat, and travel concessions granted to a person by virtue of paragraph (f) of this subsection shall be limited to travel in the performance of approved duties as defined in section one hundred and fifteen of the Local Government Act, 1948.

(3) In this section the expression "established travel concession", in relation to the grant of travel concessions by any local authority to persons of any description, means—

- (a) a travel concession which was being granted by that authority to persons of that description at any date in the year nineteen hundred and fifty-four not later than the thirtieth day of November, or
- (b) any less travel concession.

A certificate of the licensing authority for public service vehicles, granted on an application made by a local authority in accordance with the Schedule to this Act, that any travel concession specified in the certificate was at any such date as aforesaid being granted by the local authority to persons of a description so specified shall be conclusive evidence of the facts certified.

(4) The council of a county borough or county district in whose area another local authority run public service vehicles may contribute to any cost incurred by that other local authority in the granting to qualified persons of travel concessions in that area.

(5) In respect of travel concessions granted by them to qualified persons the council of a county borough or county district may, if they think fit, from time to time transfer to the credit of the account of their transport undertaking sums from the general rate fund, being sums not exceeding the cost to them of granting the concessions or so much of that cost as would not fall to be met out of the general rate fund apart from this subsection.

(6) In respect of travel concessions granted to qualified persons by a joint board or joint committee, the council of a county borough or county district, being a constituent authority of the board or committee, may if they think fit pay to the credit of the account of the transport undertaking of the board or committee sums out of the general rate fund not exceeding the appropriate proportion of the cost incurred by the board or committee in granting the concessions or so much of that cost as would not fall to be defrayed out of the general rate funds of the constituent authorities apart from this subsection.

In this subsection the expression "appropriate proportion" means, in relation to a constituent authority, the proportion in which that authority contributes to the expenses of the joint board or joint committee.

(7) Sections one and two of the Transport Charges &c. (Miscellaneous Provisions) Act, 1954, shall not apply to fares chargeable to qualified persons by virtue of travel concessions granted by local authorities, and no conditions attached to a road service licence shall prejudice the operation of arrangements for granting such concessions to such persons.

(8) Any expenditure of a local authority incurred before the passing of this Act which would have been lawful if this Act had then been in force shall be deemed to have been lawfully incurred.

2. Any expenditure incurred by the council of a county borough or county district in defraying the cost of the granting (whether before or after the passing of this Act) of travel concessions to qualified persons (whether by the council or by a joint board or joint committee of which the council are a constituent authority) or in making contributions under subsection (4) of the last foregoing section shall be left out of account in computing the expenditure of the council for the purposes of section four of the Local Government Act, 1948.

Expenditure
by local
authorities
under this Act.

3. In this Act—

Interpretation.

"local authority" means—

(i) the council of any county borough or county district; and

(ii) any joint board or joint committee which is constituted so as to include among its members representatives of a county borough or county district,

and the expression "constituent authority", in relation to any such joint board or joint committee as aforesaid, means the council of any county borough or county district represented on the board or committee;

“public service vehicle” means an express carriage, a stage carriage, a tramcar or a trolley vehicle, and “public service vehicle undertaking” shall be construed accordingly;

“express carriage”, “stage carriage”, “tramcar” and “trolley vehicle” have the same respective meanings as in the Road Traffic Act, 1930;

“qualified persons” has the meaning assigned to it by subsection (2) of section one of this Act; and

“travel concession” means the reduction or waiver of a fare or charge, either absolutely or subject to terms, limitations, or conditions.

Application
to Scotland.

4. In the application of this Act to Scotland—

- (a) for references to a local authority or to the council of a county borough or county district there shall be substituted references to a town council;
- (b) for the reference in section one of this Act to the general rate fund there shall be substituted a reference to the burgh fund; and
- (c) for the reference in section two of this Act to section four of the Local Government Act, 1948, there shall be substituted a reference to section five of the Local Government (Financial Provisions) (Scotland) Act, 1954.

Short title
and extent.

5.—(1) This Act may be cited as the Public Service Vehicles (Travel Concessions) Act, 1955.

(2) This Act shall not extend to Northern Ireland.

SCHEDULE

Section 1.

CERTIFICATION OF TRAVEL CONCESSIONS

1. Not less than fourteen days before making an application under subsection (3) of section one of this Act a local authority shall publish in at least one newspaper circulating in the locality an advertisement of the proposed application.

2. Any such advertisement shall set out the travel concessions (including any relevant terms, limitations or conditions) alleged to have been granted by the authority and the descriptions of persons in relation to which each of the concessions is alleged to have been granted, and shall state that any person may within fourteen days from the publication of the advertisement, by notice in writing given to the local authority and to the licensing authority for public service vehicles, object to the giving of the certificate applied for on the ground that travel concessions were not being granted by the local authority as alleged.

3. Before determining any such application the licensing authority shall afford to the local authority and to any person who has duly given notice of objection under the last foregoing paragraph an opportunity of being heard, and shall then in accordance with their findings either grant the certificate applied for, with or without modifications, or refuse a certificate.

Table of Statutes referred to in this Act

Short title	Session and Chapter
Road Traffic Act, 1930	20 & 21 Geo. 5. c. 43.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
Local Government (Financial Provisions) (Scotland) Act, 1954	2 & 3 Eliz. 2. c. 13.
Transport Charges &c. (Miscellaneous Provisions) Act, 1954	2 & 3 Eliz. 2. c. 64.

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